

Isha Manchanda vs Aditya Katyal on 25 January, 2024

Author: B.V. Nagarathna

Bench: B.V. Nagarathna

IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION

TRANSFER PETITION (C) NO. 2887/2022

ISHA MANCHANDA

PETITIONER

VERSUS

ADITYA KATYAL

RESPONDENT

O R D E R

This Transfer Petition has been filed under Section 25 of the Code of Civil Procedure, 1908 (for short “CPC”). The petitioner is the wife of the respondent. The petitioner has sought the following reliefs:

“(a) Transfer the H.M. Petition No.443/2022, under Sections 13(1)(i-a) Or Alternative 12(1)(c) of the Hindu Marriage Act, 1955, titled as ‘Aditya Katyal Vs. Isha Manchanda’ filed by the respondent husband, which is pending before the learned Principal Judge, Family Court, Gautam Buddha Nagar, Uttar Pradesh to a Court of Competent Jurisdiction at Faridabad, under the jurisdiction of Punjab and Haryana, High Court at Chandigarh.

and/or

(b) Pass such other and further order(s) as this Hon’ble Court may deem fit and proper in the facts and circumstances of the case.” During the pendency of the Transfer Petition, the parties were referred to the Supreme Court Mediation Centre in order to explore the possibility of a settlement in the matter.

Learned counsel for the respective parties submitted that the parties have arrived at a settlement and the terms and conditions of the same are crystallized in the form of a Settlement Agreement dated 20.07.2023. The parties have decided to dissolve their marriage by a decree of divorce by mutual consent on certain terms and conditions mentioned in the Settlement Agreement.

Learned counsel for the respective parties further submitted that the parties have filed a joint application under Article 142 of the Constitution of India seeking dissolution of their marriage by a decree of divorce by mutual consent.

It was further brought to our notice that the couple have a son name Master Mudit Manchanda who is presently two years and nine months old and the permanent custody of the minor son has been given to the petitioner herein without reserving any right, even in the nature of visitation rights to the respondent.

Learned counsel for the respondent submitted that a sum of Rs.40,50,000/- (Rupees forty lakhs and fifty thousand only) in full and final settlement of petitioner's claims has been paid by electronic transfer to the petitioner and the petitioner who is present in Court has acknowledged the receipt of the said amount.

Learned counsel for the respective parties also submitted that the parties have sought for quashing of certain proceedings initiated by them inter se which are mentioned in paragraph '2' of the Settlement Agreement.

It was also brought to our notice that cases filed by the parties inter se ought to be quashed.

The parties are present before the Court. They have been identified by their respective counsel.

When queried by this Court, they stated that they have indeed arrived at a settlement and have decided to part ways and hence, have filed an application under Article 142 of the Constitution seeking dissolution of their marriage by a decree of divorce by mutual consent. They further stated that they have arrived at a settlement on their own free volition without there being any coercion or undue influence from any side. They also stated that they would abide by the terms of the Settlement Agreement.

In the above circumstances, the Settlement Agreement as well the application filed under Article 142 of the Constitution are taken on record.

On perusal of the same, we find that the parties have sought for quashing of the following cases:

“Case filed by the Petitioner Ms. Isha Manchanda against Aditya Katyal & Ors. is as under:

- (i) Crime Case No.5152 of 2021, against the FIR No.97 of 2021 under Section 498-A, 377, 354A, 315, 323, 406 & 34 of IPC pending before the Ld. Faridabad Court, Haryana.
- (ii) Domestic Violence Case No. CC No. COMA/1031/2021 titled as Isha Manchanda Vs. Aditya Katyal & Ors. pending before Shri Harish Goyal, ACJM, Faridabad Court, Haryana.
- (iii) Case No.572 of 2021 under Section 125 Cr.P.C. pending before Shri Sanjay Kumar Sharma, Additional Principal Judge, Family Court against the Respondent.

(iv) Case No.filing No.232921 of 2022 Pending before the ACJM Noida U.P. Cases filed by the Ms. Nandini Katyal against Mr. Aditya Katyal and Ms. Isha Manchanda is as under:-

(i) Case No.6541 of 2020 under D.V. Act against Aditya Katyal & Ors. pending before Ld. ACJM -3, District Court, Gautam Budh Nagar, Uttar Pradesh.

Case filed by the Sudhir Katyal Vs. Aditya Katyal & Anr. is as under:-

(i) Case No.18338 of 2020 titled Sudhir Katyal Vs. Aditya Katyal & Ors. Decided before SDM Dadri District Court, Haryana.

Case filed by the Aditya Katyal against Isha Manchanda is as under:-

(ii) H.M. Petition No.443 of 2022 titled against Aditya Katyal Vs. Isha Manchanda pending before Ld. Family Courts, Gautam Budh Nagar, Uttar Pradesh.

(iii) CRM- M-50662-2022 titled Aditya Katyal Vs. State of Haryana & Anr. pending before the Ld. High Court of Punjab & Haryana at Chandigarh.

FIR Case filed by the Uncle (Mama) of Aditya Katyal F.I.R. No.0266 of 2021 filed at Police Station Lajpat Nagar, South East District, Delhi on 27.06.2021 under Section 323, 341, 506 of IPC, 1860 titled Vikrant Malhotra Vs. Dheeraj Manchanda, In case of any complaint filed/pending before any court/forum by wife Roma Alias Komal Manchada or husband Dheeraj Manchanda against Vikrant Mehrotra or his wife Ms. Bhawna Mehrotra Same shall be withdrawn and not taken forward.” The aforesaid cases stand quashed.

It is also noted that the permanent custody of the minor child Master Mudit Manchanda shall remain with the petitioner-wife and the respondent shall have no claim over the child as well as hence, no visitation rights are reserved with the respondent. It is already stated that a sum of Rs.40,50,000/- (Rupees forty lakhs and fifty thousand only) has been paid by the respondent to the petitioner in full and final settlement of all claims of the petitioner as against the respondent.

On perusal of clause ‘10’ of the Settlement Agreement, it is noted that the minor son Mudit Manchanda would have no claim whatsoever in future with regard to the movable and/or immovable assets/property of the respondent.

We find that the said term in the Settlement Agreement is contrary to the position of law and is unconscionable term therefore, the said term shall stand deleted from the term of the Settlement Agreement.

It is needless to observe that the right, title and interest that the minor son may have vis a vis the movable and/or immovable assets/property of the parents shall be in accordance with law.

On perusal of the other terms and conditions of the Settlement Agreement dated 20.07.2023, we find that the same are lawful and there is no legal impediment in accepting the same. Hence, the same are accepted by this Court.

The contents of the joint application filed under Article 142 of the Constitution of India are also perused. Taking note of the Settlement Agreement as well as the joint application, we hereby dissolve the marriage between the parties solemnized on 02.03.2020 at Faridabad by a decree of divorce by mutual consent.

The Settlement Agreement shall form part and parcel of this order and would be subject to the aforesaid observations made by us.

The Registry to draw-up a decree in the aforesaid terms.

In view of the aforesaid, this Transfer Petition is disposed of.

Pending application(s), if any, shall stand disposed of.

.....J. (B.V. NAGARATHNA)J. (AUGUSTINE GEORGE MASIH) NEW DELHI;

JANUARY 25, 2024

ITEM NO.1

COURT NO.12

SECTION XI

S U P R E M E C O U R T O F
RECORD OF PROCEEDINGS

I N D I A

TRANSFER PETITION(S) (CIVIL)

NO(S) . 2887/2022

ISHA MANCHANDA

Petitioner(s)

VERSUS

ADITYA KATYAL

Respondent (s)

(IA No. 195723/2022 - EX-PARTE STAY;
I.A. No.173735/2023)

Date : 25-01-2024 This matter was called on for hearing today. CORAM :

HON'BLE MRS. JUSTICE B.V. NAGARATHNA HON'BLE MR. JUSTICE
AUGUSTINE GEORGE MASIH For Petitioner(s) Mr. Amit Kumar Singh, AOR Ms. K
Enatoli Sema, Adv.

Ms. Chubalemla Chang, Adv.

Mr. Prang Newmai, Adv.

For Respondent(s) Dr. Pankaj Garg, Adv.

Mr. Milind Garg, Adv.

Ms. Nikita Garg, Adv.

Mr. Yaksh Garg, Adv.

Mr. Suvidutt M.S., AOR UPON hearing the counsel the Court made the following O R D E R Registry to put up I.A. No.173735/2023, which is a joint application filed on behalf of the petitioner and respondent under Article 142 of the Constitution of India.

The transfer petition is disposed of in terms of the signed order.

Pending application(s), if any, shall stand disposed of.

(RADHA SHARMA)
COURT MASTER (SH)

(MALEKAR NAGARAJ)
COURT MASTER (NSH)

(Signed order is placed on the file)